

ACMEREALTY BROKERAGE

Licensed Real Estate Professionals

Purchase and Sale Agreement

WHEREAS, Buyer desires to purchase and Seller desires to sell the real property described herein, the parties agree to the following terms and conditions of sale, subject to the contingencies and provisions set forth in this Agreement.

ARTICLE I — PARTIES

Buyer Name

Buyer Email

Buyer Phone

Seller Name

Seller Email

Seller Phone

ARTICLE II — PROPERTY DESCRIPTION

Property Address

City

State

ZIP

Parcel / Tax ID

MLS Number

Together with all improvements, fixtures, and appurtenances thereto, and all rights, easements, and privileges appertaining thereto (collectively, the "Property").

ARTICLE III — PURCHASE PRICE AND FINANCING

Purchase Price

Earnest Money Deposit

Down Payment

Financing Type

The earnest money deposit shall be held in escrow by the designated title company or closing agent and applied toward the purchase price at closing. If this transaction fails to close due to Buyer default, the earnest money may be forfeited as liquidated damages, subject to the terms of this Agreement.

ARTICLE IV — CONTINGENCIES

This Agreement is contingent upon the satisfaction or waiver of each of the following conditions within the specified time periods:

- (a) **Inspection Contingency.** Buyer shall have fifteen (15) calendar days from the date of mutual acceptance to conduct, at Buyer's expense, a professional inspection of the Property, including but not limited to structural, mechanical, electrical, plumbing, and environmental assessments. Buyer may request repairs or terminate this Agreement based on inspection findings.
- (b) **Financing Contingency.** This Agreement is contingent upon Buyer obtaining a written commitment for financing within thirty (30) days of the effective date. If Buyer is unable to secure financing despite good-faith efforts, Buyer may terminate this Agreement and receive a full refund of the earnest money deposit.
- (c) **Appraisal Contingency.** If the Property appraises below the purchase price, Buyer may: (i) proceed with the purchase at the agreed price, (ii) negotiate a reduced purchase price with Seller, or (iii) terminate this Agreement with full return of earnest money.

ARTICLE V — CLOSING

Closing Date

Title Company

Closing shall take place at the offices of the designated title company on or before the date specified above. Seller shall convey marketable title to Buyer by general warranty deed, free and clear of all liens, encumbrances, and defects, except for those accepted by Buyer in writing.

ARTICLE VI — DISCLOSURES

Seller shall provide all required property disclosures within five (5) business days of mutual acceptance, including but not limited to:

- (a) Known material defects in the structure, roof, foundation, plumbing, electrical, HVAC, or any other system of the Property.
- (b) Lead-based paint disclosure for properties constructed prior to 1978, in compliance with 42 U.S.C. § 4852d and applicable federal regulations.
- (c) Past insurance claims, flooding history, mold remediation, or environmental hazards affecting the Property.
- (d) Pending or anticipated special assessments, homeowners association dues, zoning changes, or governmental actions that may affect the Property.

ARTICLE VII — DEFAULT AND REMEDIES

If Buyer defaults under this Agreement, Seller may retain the earnest money deposit as liquidated damages, and both parties shall be released from further obligation. If Seller defaults, Buyer may pursue specific performance or terminate this Agreement and recover all deposits, together with reasonable costs and attorney fees incurred.

ARTICLE VIII — ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties concerning the purchase and sale of the Property. No amendment, modification, or waiver of any provision shall be effective unless made in writing and signed by both parties. Time is of the essence in all provisions of this Agreement.

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have executed this Purchase and Sale Agreement as of the date last written below.

Buyer

Date

Seller

Date

Buyer's Agent

Date

Seller's Agent

Date